

SUPREME COURT OF THE STATE OF NEW YORK COUNTY OF KINGS	Date Purchased:
-----X JEANETTE ROSS Tyl.K., an infant, by his mother and natural guardian, Jeanette Ross Tyn.K., an infant, by her mother and natural guardian, Jeanette Ross T.R., an infant, by his mother and natural guardian, Jeanette Ross TYRONE KNIGHT ANDRE BROWN KIARA BROWN S.K, an infant by her mother and natural guardian, Kiara Brown	Index No.:
Plaintiffs -against-	SUMMONS
CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, JASON BRODERICK, JOHN DOE #1, JOHN DOE #2, JOHN DOE NOS 3-13	Plaintiff designates Kings County as the place of venue.
Defendants -----X	Venue is based on plaintiffs' residence Plaintiffs reside at 210 Kosciuszki Street, Apt 3H Brooklyn, NY 11216

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, NY
February 6, 2023



Beth J. Schlossman, Esq.

Attorney for Plaintiffs

JEANETTE ROSS

**Tyl.K., an infant, by his mother and natural
guardian, Jeanette Ross**

**Tyn.K., an infant, by her mother and
natural guardian, Jeanette Ross
T.R., an infant, by his mother and natural
guardian, Jeanette Ross
TYRONE KNIGHT
ANDRE BROWN
KIARA BROWN
S.K, an infant by her mother and natural
guardian, Kiara Brown
26 Court Street, Suite 2506
Brooklyn, NY 11242
(718) 522-5000**

TO: Corporation Counsel of the City of New York
Attorneys for defendants
**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, JASON
BRODERICK, JOHN DOE #1, JOHN DOE #2, JOHN DOE NOS 3-13
100 Church Street
New York, New York 10007**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JEANETTE ROSSTyl.K., an infant, by his mother and natural guardian,
Jeanette RossTyn.K., an infant, by her mother and natural guardian,
Jeanette RossT.R., an infant, by his mother and natural guardian,
Jeanette Ross

TYRONE KNIGHT

ANDRE BROWN

KIARA BROWN

S.K, an infant by her mother and natural guardian, Kiara
Brown

Plaintiff

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JASON BRODERICK, JOHN DOE
#1, JOHN DOE #2, JOHN DOE NOS 3-13DEFENDANTS
-----X

Index No.:

VERIFIED COMPLAINT

Plaintiffs, by their attorneys, LAW OFFICES OF BETH J. SCHLOSSMAN, ESQ.,
complaining of the defendants, respectfully alleges upon information and belief:

1. That at all times hereinafter mentioned, the plaintiffs were residents of the County of Kings, City and State of New York.
2. That this action falls within one or more of the exemptions set forth in CPLR § 1602.
3. That the cause of action herein arose in the County of Kings, City and State of New York.
4. That heretofore and prior to the commencement of this action, on February 4, 2022, a Notice of Claim was served on the defendants, **CITY OF NEW YORK and NEW**

YORK CITY POLICE DEPARTMENT, setting forth the time, place, and

circumstances surrounding the occurrence sued herein.

5. Plaintiff Jeanette Ross appeared at a statutory hearing pursuant to GML 50-h on May 11, 2022.
6. Plaintiff Tyrone Knight appeared at a statutory hearing pursuant to GML 50-h on August 25, 2022.
7. The statutory hearing pursuant to GML 50-h for plaintiff Andre Brown was adjourned because plaintiff was unavailable to appear and give testimony. Pursuant to a stipulation executed by plaintiff and defendant, and filed with the Office of the Comptroller of New York City, plaintiff Andre Brown will appear and give testimony at a statutory hearing pursuant to GML 50-h within 30 days of becoming available.
8. A statutory hearing pursuant to GML 50-h was not held for plaintiff Kiara Brown.
9. That more than thirty (30) days have elapsed since said demand or claim upon which this action is founded and said claim remains unadjusted; that no settlement on said claim has been made.
10. That at all times herein mentioned, the defendant, **CITY OF NEW YORK**, is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
11. That at all times hereinafter mentioned, the defendant, **NEW YORK CITY POLICE DEPARTMENT** (hereinafter "NYPD"), is a police agency/department for **CITY OF NEW YORK**.
12. That at all times herein mentioned, the defendant, **JASON BRODERICK**, shield number 1582, was a police officer employed by the New York City Police Department.

13. That at all times herein mentioned, the defendant, **“John Doe #1”**, shield number 13561, name unknown, was a police officer employed by the New York City Police Department.
14. That at all times herein mentioned, the defendant, **“John Doe #2”**, shield number 32044, name unknown, was a police officer employed by the New York City Police Department.
15. That at all times herein mentioned, the defendants, **“John Doe #3-13”**, shield number and name unknown, were police officers employed by the New York City Police Department.
16. On Tuesday, November 9, 2021, at approximately 5:45 a.m., at the plaintiff’s home located at 210 Kosciuszko Street, Apt. 3H, County of Kings, City and State of New York, the plaintiffs were assaulted and battered by the defendants JASON BRODERICK, JOHN DOE #1, JOHN DOE #2, JOHN DOE NOS 3-13, members of the NYPD who assaulted, battered, falsely arrested, jailed and maliciously prosecuted and who did unlawfully and falsely arrest, harass, assault, batter, imprison, and maliciously prosecute the plaintiffs herein and violate their civil rights.
17. Said police officers did unlawfully and falsely arrest, harass, assault, batter, imprison, and maliciously prosecute the plaintiffs herein and violate their civil rights. Plaintiff Andre Brown was detained, personally searched, handcuffed, arrested, detained in the Eric M. Carter Center on Riker’s Island, and charged under Case # Ind-7408-20, with, *inter alia*, attempted murder in the second degree, attempted assault in the first degree, and possession of a loaded firearm.
18. More specifically, the aforementioned police officers forced entry into the residence occupied by the plaintiffs outside of the time period set forth in the warrant under which they were purported to be acting. Once inside the residence, the aforementioned police officers illegally and improperly handcuffed the plaintiffs and prevented them from

leaving the premises and did unlawfully and falsely arrest, harass, assault, batter, imprison, and maliciously prosecute the plaintiffs herein and violate their civil rights. In their search of the premises, the aforementioned police officers searched outside the boundaries of the search warrant.

19. The Plaintiff claims improper supervision and training of their employees, to wit, Police Officers of the City of New York, and in particular the aforementioned police officers, and the continued retention in a position of employment and authority those members of the Police Department of New City who did unlawfully and falsely arrest, harass, assault, batter, imprison, and maliciously prosecute unlawfully and falsely arrest, harass, assault, batter, imprison, and maliciously prosecute him, knowing either actually or constructively that said officers are ill-equipped to remain a lawful power and in authority as New York City Police Officers in that their mental faculties, personalities, and past employment records indicate that they are aggressive, racist, ill-tempered, ill-mannered personnel that should not have authority under the law of the State of New York and City of New York to execute search warrants in the City of New York due to their inability to function properly as New York City Police officers.
20. That the defendant, CITY OF NEW YORK, improperly hired, trained, maintained and retained the aforesaid officers in positions of power and authority and as a direct result of that improper hiring, retaining, maintaining, and training of said officers, the plaintiffs were unlawfully and falsely arrested, harassed assaulted, battered, imprisoned, and maliciously prosecuted.
21. That said police officers unlawfully and falsely arrested, harassed assaulted, battered, imprisoned, maliciously prosecuted and intimidated the plaintiff Andre Brown.

22. That said police officers used excessive and unnecessary force on the plaintiff, Tyrone Knight, resulting in the plaintiff sustaining injuries which required hospitalization and from which he otherwise continues to experience symptoms.
23. That said police officers used excessive and unnecessary force on the plaintiffs, resulting in the plaintiffs sustaining serious permanent injuries.
24. That the defendant, CITY OF NEW YORK, had the duty to competently and sufficiently hire, train, and retain within the Police Academy and at the Command, Precinct, and Patrol levels those officers who can conform their conduct to a standard, established by law, for the protection of citizens such as plaintiffs, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries such as to the plaintiffs herein.
25. That the defendant, CITY OF NEW YORK, breached its duty to competently and sufficiently hire, train, and retain within the Police Academy and at the Command, Precinct, and Patrol levels those officers who can conform their conduct to a standard, established by law, for the protection of citizens such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries such as to the plaintiffs herein.
26. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and the County of Kings, and under the authority of their office as police officers of said state, city and county.

27. The defendant, CITY OF NEW YORK, failed to competently and sufficiently hire, train, and retain the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as the plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.
28. The CITY OF NEW YORK, the NEW YORK CITY POLICE DEPARTMENT, and the subject police officers have willfully violated the plaintiffs' constitutional rights. The CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT and their agents, servants, and/or employees did violate the plaintiffs' civil rights under 42 US Code §1983 and 42 US Code §1985.
29. Upon information and belief, the plaintiff was placed in handcuffs and illegally restrained and illegally arrested, charged, and detained.
30. That based upon the foregoing, the plaintiffs have been deprived of their civil rights and sustained damages as a result therefrom.
31. That as a result of said false imprisonment, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of any lower courts.
- AS AND FOR A SECOND CAUSE OF ACTION**
32. The plaintiffs repeat and reiterate each and every allegation contained in paragraphs "1" through "31" inclusive.
33. The defendants herein through their agents, servants and/or employees failed to properly train and employ various police department officers of the City of New York.

34. The defendants herein, specifically the CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, improperly hired and retained the aforementioned police officers in the above-entitled action.
35. The CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT knew or should have known of the propensity of the police officers involved in that their mental faculties, personalities, and past employment records would indicate that they are aggressive, brutal, racist, ill-tempered and ill-mannered personnel that should not have police powers under the laws of the State of New York and the CITY OF NEW YORK, as police officers.
36. That the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, did tolerate, promote, and maintain said officer(s) in authoritarian positions knowing of their propensities to be ill-equipped to serve as New York City police officers.
37. That as a result of the failure of the CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT to oversee and train said aforementioned officers and further to tolerate their ill-suited temperaments to continue in the position as New York City police officers, the plaintiffs were assaulted, battered, and harassed.
38. Said defendants, by failing to properly discipline said aforementioned police officers did encourage and create a condition which promulgated itself in the assault and battery.
39. That the defendants are liable under the doctrine of *respondeat superior*.
40. That the defendants have caused damage to the plaintiffs in an amount that exceeds the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

41. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs number “1” through “40” inclusive.
42. That the plaintiffs were assaulted by members of the NYPD who did unlawfully harass, assault, batter, and imprison the plaintiffs herein and violate their civil rights.
43. More specifically, the aforementioned police officers, did unlawfully and wrongfully assault, batter, harass, and imprison the plaintiffs herein, and violate and deprive the plaintiffs of their civil rights.
44. The aforementioned police officers did unlawfully and wrongfully, without provocation and without their consent, make contact with the plaintiffs’ body, causing them serious and severe bodily injury.
45. The plaintiffs have been damaged by the unlawful, offensive, and unwanted touching and bodily contact of the defendants, their agents, and/or servants.
46. That based upon the foregoing, this plaintiffs were severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and great physical pain and emotional upset, has suffered and continues to suffer serious emotional anguish, distress, and injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiffs will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to the plaintiffs’ great damage.

47. That the defendants are liable under the doctrine of *respondeat superior*.
48. That as a result of said excessive and unnecessary force which resulted in severe injuries therefrom, the plaintiff has been deprived of her civil rights under 42 U.S. Code §1983 and §1985.
49. That the defendants have caused damage to the plaintiff in an amount that exceeds the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

50. Plaintiff Andre Brown repeats and reiterates each and every allegation contained in paragraphs number “1” through “49” inclusive.
51. That on November 9, 2022, after plaintiff Andre Brown was unlawfully and falsely arrested, detained at the Eric M. Carter Center on Riker’s Island.
52. That the plaintiff has been damaged by the unlawful imprisonment and conspiracy of the defendants, their agents, servants and/or employees.
53. That based upon the foregoing, Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of any lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

54. Plaintiff Andre Brown repeats and reiterates each and every allegation contained in paragraphs number “1” through “53” inclusive.
55. Plaintiff was maliciously and unlawfully prosecuted through the perjured statements of the various agents, servants and/or employees of the defendants herein and was prosecuted under docket number IND-74048-20
56. That under said docket number, Plaintiff was maliciously and illegally prosecuted under

docket number IND-74048-20 for the Criminal Court of the City of New York, County of Kings, and charged with attempted murder in the second degree, attempted assault in the first degree, and possession of a loaded firearm.

57. That the defendants, through their agents, servants and/or employees, knew that said allegations which resulted in the aforestated docket number and arrest were false, malicious and perjured, and were not the result of any illegal or wrong doings on the part of the plaintiff Andre Brown.
58. That the defendants herein through their agents, servants and/or employees continued to maliciously, falsely and illegally prosecute the plaintiff through the New York City Criminal Court system.
59. That as a result of the defendant, their agents, servants and/or employees in falsely and illegally and maliciously prosecuting the plaintiff herein, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of any lower Court.

AS AND FOR A SIXTH CAUSE OF ACTION

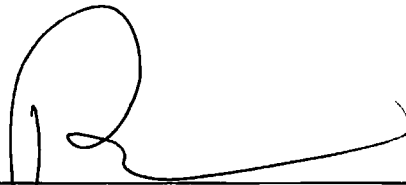
60. Plaintiff Andre Brown repeats and reiterates each and every allegation contained in paragraphs number “1” through “59” inclusive.
61. The defendants herein through their agents, servants and/or employees did conspire to charge the plaintiff with committing a crime under docket number IND-74048-20 for the Criminal Court of the City of New York, County of Kings, and charged with attempted murder in the second degree, attempted assault in the first degree, and possession of a loaded firearm.

62. That said conspiracy was undertaken by the defendants through their agents, servants, employees and/or through the various police officers involved in the arrest herein was promulgated as a result of the plaintiff's race.
63. That the defendants, their agents, servants and/or employees did illegally, unlawfully and purposely conspire to illegally arrest, incarcerate and prosecute the plaintiff solely because of the plaintiff's race and/or color.
64. The defendants through their agents, servants and/or employees did violate the plaintiff's civil rights both under the New York State Constitution and under the Constitution of the United States of America, specifically under Chapter 42 of the United States Code, Sections 1983 and 1985, by the use of excessive and unnecessary force on the plaintiff, which resulted in severe injuries therefrom and by illegally, unlawfully and purposely conspiring to illegally arrest, incarcerate and prosecute the plaintiff solely because of the plaintiff's race and/or color.
65. As a result of the defendants, their agents, and/or employees by illegally, unlawfully and purposely conspiring to illegally arrest, incarcerate and prosecute the plaintiff and as a result of their use of unnecessary and excessive force on the plaintiff because of his race and/or color, plaintiff has been damaged in an amount exceeding the jurisdictional amounts of any lower courts.

WHEREFORE, Plaintiff demands judgment against the defendants in the **FIRST CAUSE OF ACTION** for an amount which exceeds the jurisdictional limits of all lower courts; in the **SECOND CAUSE OF ACTION** for an amount which exceeds the jurisdictional limits of all lower courts; in the **THIRD CAUSE OF ACTION** for an amount which exceeds the jurisdictional limits of all lower courts; in the **FOURTH CAUSE OF ACTION** for an amount which exceeds the jurisdictional limits of all lower courts; in the **FIFTH CAUSE OF ACTION** for an amount which exceeds the jurisdictional limits of all lower courts; and awarding punitive damages to the plaintiff in an amount which exceeds the jurisdictional limits of any lower courts; in the **SIXTH CAUSE OF ACTION** for

an amount which exceeds the jurisdictional limits of all lower courts; and for such other, different, and further relief as this Court may deem just and proper.

Dated: Brooklyn, NY
February 6, 2023



Beth J. Schlossman, Esq.
Attorney for Plaintiffs

JEANETTE ROSS

Tyl.K., an infant, by his mother and natural guardian, Jeanette Ross

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(718) 522-5000

TO: Corporation Counsel of the City of New York
Attorneys for defendants

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, JASON
BRODERICK, JOHN DOE #1, JOHN DOE #2, JOHN DOE NOS 3-13**

100 Church Street

New York, New York 10007

ATTORNEY VERIFICATION

STATE OF NEW YORK

ss.:

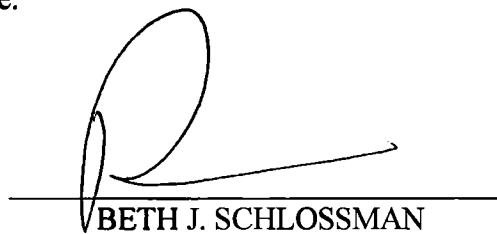
COUNTY OF KINGS

BETH J. SCHLOSSMAN, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following under the penalties of perjury:

That I have read the annexed **Verified Complaint** and know the contents thereof and the same are true to my own knowledge except as to those matters therein which are stated to be alleged on information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following: books, records, file maintained in my office and conversations with the plaintiff.

The reason I make this affirmation instead of the plaintiff is that plaintiff is not presently in the county wherein your affirmitant maintains her office.

Dated: Brooklyn, New York
February 6, 2023



BETH J. SCHLOSSMAN

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiffs,

-against-

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JOHN DOE #1, JOHN DOE #2, JOHN DOE NOS 3-13

Defendants

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF BETH J. SCHLOSSMAN

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